

Conformity assessment procedures under the AI Act

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Abstract

This article critically analyses conformity assessment procedures for high-risk AI systems under the AI Act. It maps the applicable procedures to different types of AI systems, offering structured guidance for implementation. The article then evaluates the AI Act’s reliance on procedures laid down in other Union harmonisation legislation. It demonstrates how this reliance leads to a risk classification that fails to adequately consider AI-specific risks, and questions the suitability of various procedures for assessing AI systems. Finally, it

explores how the assignment of these conformity assessment procedures impacts the requirements that conformity assessment bodies must adhere to. By offering this analysis of the regulatory landscape, this article contributes to a better understanding of the AI Act's systemic challenges and identifies regulatory blind spots.

1. Introduction

In August 2024, the European Union's Regulation (EU) 2024/1689 (AI Act)¹ came into force, establishing a regulatory framework for artificial intelligence (AI) systems. The AI Act relies on a risk-based approach under which regulatory obligations are tiered according to a risk classification framework. AI systems classified as 'high-risk' are subject to stricter requirements and oversight due to their potential negative impact on individuals and society. To ensure the conformity of high-risk AI systems with these requirements, the AI Act requires conformity assessments before such systems can be placed on the internal market or put into service. According to Art. 3(12) of Regulation (EC) No 765/2008,² conformity assessment means demonstrating whether specified requirements relating to a product, process, service, system, person, or body have been fulfilled. The requirements to be met by high-risk AI systems are laid down in Chapter III Section 2 of the AI Act. In addition, some of the obligations of providers of high-risk AI systems set out in Chapter III Section 3 of the AI Act may also be the subject of these conformity assessments.

In contrast to other Union harmonisation legislation, the AI Act outlines specific conformity assessment procedures for high-risk AI systems only partially within its own legislative text (Annex VI and Annex VII to the AI Act respectively). In the case of high-risk AI systems that are components of products covered by Union harmonisation legislation listed in Annex I Section A to the AI Act, the AI Act requires their providers to follow the relevant conformity assessment procedure as required by those legal acts instead.³ As part of the EU's New Legislative Framework (NLF), these legal acts largely build on a modular framework outlined in Decision No 768/2008/EC.⁴ This framework specifies conformity assessment procedures that can be applied across various sectors, ensuring a consistent and comprehensive approach to conformity assessments in the European single market.⁵

This article argues that the AI Act's unique approach of relying on conformity assessment procedures laid down in other Union harmonisation legislation creates distinct challenges and, therefore, warrants close attention. As this article demonstrates, the approach affects risk classification, the suitability of the conformity assessment procedures for assessing the AI Act's legal requirements, and the types of conformity assessment bodies authorised to conduct them, as well as the requirements they must adhere to. Accordingly, significant deficiencies in this approach could pose a direct risk to the protection of health, safety, and fundamental rights.

¹ Regulation (EU) 2024/1689 of the European Parliament and of the Council of 13 June 2024 laying down harmonised rules on artificial intelligence and amending Regulations (EC) No 300/2008, (EU) No 167/2013, (EU) No 168/2013, (EU) 2018/858, (EU) 2018/1139 and (EU) 2019/2144 and Directives 2014/90/EU, (EU) 2016/797 and (EU) 2020/1828 (Artificial Intelligence Act) [2024] OJ L 1689.

² Regulation (EC) 765/2008 of the European Parliament and of the Council of 9 July 2008 setting out the requirements for accreditation and market surveillance relating to the marketing of products and repealing Regulation (EEC) 339/93 [2008] OJ L 218/30.

³ While these legal acts impose obligations related to conformity assessments mostly on the 'manufacturer', the AI Act assigns these obligations to the 'provider' (i.e., the entity that develops an AI system, or has one developed, with a view to placing it on the market or putting it into service under its own name or trademark). Art. 25(3) of the AI Act ensures regulatory consistency by determining that for high-risk AI systems functioning as safety components of products covered by Annex I Section A, the product manufacturer is legally considered the provider of the AI system. Consequently, the manufacturer assumes all obligations of a provider under the AI Act, allowing for the integration of the AI Act's requirements into the manufacturer's existing conformity assessment processes.

⁴ Decision No 768/2008/EC of the European Parliament and of the Council of 9 July 2008 on a common framework for the marketing of products, and repealing Council Decision 93/465/EEC [2008] OJ L 218/82.

⁵ European Commission, Commission Notice – The "Blue Guide" on the Implementation of EU Product Rules 2022 [2022] OJ C 247/1.

The central role of conformity assessments in the application of the AI Act is widely acknowledged in the pertinent literature.⁶ In particular, scholars have criticised the fact that conformity assessments are entrusted to private bodies that have contractual relationships with the providers of high-risk AI systems. Yet, with few exceptions, previous studies treat the specificities of individual conformity assessment procedures as a secondary concern within such broader critiques of the quality infrastructure in which the AI Act is embedded. Notable exceptions include Floridi et al., who propose a conformity assessment framework for organisational governance and the operationalisation of ethical requirements in the context of AI,⁷ and Thelisson and Verma, who discuss the approach to conformity assessment procedures in the AI Act in more detail.⁸ However, neither of these studies addresses in detail how the interplay between the AI Act and other relevant legal acts determines the selection of specific conformity assessment procedures, and both rely on earlier drafts of the AI Act.

To date, studies that do address how the interplay between the AI Act and other legal acts determines the selection of specific conformity assessment procedures remain limited to individual sectors. For instance, in an inquiry into the effect of the AI Act on manufacturers of medical devices, Johner provides an overview of conformity assessment procedures that are applicable to medical devices of different classes according to Regulation (EU) 2017/745 (Medical Devices Regulation ('MDR' in the appendices))⁹ and Regulation (EU) 2017/746 (In Vitro Diagnostic Medical Devices Regulation ('IVDR' in the appendices))¹⁰ that might be affected by the AI Act.¹¹ However, a comprehensive overview and analysis of the conformity assessment procedures for the entire AI Act does not currently exist.¹²

To address this gap, this article provides such a comprehensive overview and critical analysis of the conformity assessment procedures established by the AI Act. This is achieved by mapping the applicable procedures to the various types of high-risk AI systems. Following an outline of the conceptual foundations regarding risk classification, the New Legislative Framework, the AI Act's selection mechanism for assessment procedures, and the requirements for conformity assessment bodies (Section 2), the article introduces its mapping approach (Section 3). By evaluating the resulting cross table, the article uncovers the complexity and fragmentation of the applicable regulatory framework (Section 4). It breaks down which specific assessment modules are applicable across different product categories, reveals structural peculiarities regarding mandatory third-party assessments, and derives the resulting requirements for conformity assessment bodies. Building on these findings, Section 5 critically evaluates the AI Act's reliance on external conformity assessment procedures. It examines how this approach impacts risk classification and questions the suitability of these procedures for addressing AI-specific risks. Ultimately, the article concludes by summarising the challenges arising from this legislative design and highlights the resulting inadequacies in mitigating risks specific to artificial intelligence.

⁶ See eg Gabriele Mazzini and Salvatore Scalzo, 'The Proposal for the Artificial Intelligence Act: Considerations around Some Key Concepts' (2022) SSRN <https://www.ssrn.com/abstract=4098809> accessed 11 February 2026; Claudio Novelli and others, 'A Robust Governance for the AI Act: AI Office, AI Board, Scientific Panel, and National Authorities' [2024] European Journal of Risk Regulation 1; Nathalie A Smuha and Karen Yeung, 'The European Union's AI Act: Beyond Motherhood and Apple Pie?' (2024) SSRN <https://www.ssrn.com/abstract=4874852> accessed 11 February 2026; Michael Veale and Frederik Zuiderveen Borgesius, 'Demystifying the Draft EU Artificial Intelligence Act — Analysing the Good, the Bad, and the Unclear Elements of the Proposed Approach' (2021) 22 Computer Law Review International 97.

⁷ Luciano Floridi and others, 'capAI - A Procedure for Conducting Conformity Assessment of AI Systems in Line with the EU Artificial Intelligence Act' (2022) SSRN <https://www.ssrn.com/abstract=4064091> accessed 11 February 2026.

⁸ Eva Thelisson and Himanshu Verma, 'Conformity Assessment under the EU AI Act General Approach' (2024) 4 AI and Ethics 113.

⁹ Regulation (EU) 2017/745 of the European Parliament and of the Council of 5 April 2017 on medical devices, amending Directive 2001/83/EC, Regulation (EC) 178/2002 and Regulation (EC) 1223/2009 and repealing Council Directives 90/385/EEC and 93/42/EEC (Medical Devices Regulation) [2017] OJ L 117/1.

¹⁰ Regulation (EU) 2017/746 of the European Parliament and of the Council of 5 April 2017 on in vitro diagnostic medical devices and repealing Directive 98/79/EC and Commission Decision 2010/227/EU [2017] OJ L 117/176.

¹¹ Christian Johner, 'Was der AI Act für Medizinprodukte- und IVD-Hersteller bedeutet' (Johner Institut, 2024) <https://www.johner-institut.de/blog/iec-62304-medizinische-software/ai-act-eu-ki-verordnung/> accessed 11 February 2026.

¹² There are further studies discussing conformity assessments of AI without a specific focus on the AI Act. See, e.g., Von Zahn M and others, 'Navigating AI Conformity: A Design Framework to Assess Fairness, Explainability, and Performance' (2025) 35 Electronic Markets. Because these do not directly relate to the research question of this paper, they are not discussed further here.

2. Background

2.1 Classification of high-risk AI systems

The AI Act adopts a risk-based approach, assigning varying requirements and obligations to AI systems and their providers based on the system's risk classification. Conformity assessments are only required for AI systems that are classified as high-risk. While systems with unacceptable risk are prohibited from being placed on the market, systems that are classified as posing a risk below the high-risk threshold can be placed on the market without undergoing conformity assessments. This approach aims to ensure that regulatory requirements are proportionate to the risks posed by different AI systems.

High-risk AI systems are classified under Art. 6 of the AI Act. Two primary pathways for classification as high-risk exist. The first pathway classifies an AI system as high-risk under Art. 6(1) of the AI Act if two cumulative conditions are met: First, “the AI system is intended to be used as a safety component of a product, or the AI system is itself a product, covered by the Union harmonisation legislation listed in Annex I” (Art. 6(1)(a) of the AI Act). These legal acts concern, for instance, machinery, toys, medical devices, and vehicles. Second, the product or safety component must be subject to a mandatory third-party conformity assessment under the Union harmonisation legislation before being placed on the market or put into service (Art. 6(1)(b) of the AI Act). This is only the case for certain products covered by the respective legal acts, specifically those that are considered high-risk within these legal acts.¹³ To the best of our knowledge, a comprehensive overview of which products are to be classified as high-risk AI systems based on the selectable conformity assessment procedures in accordance with Art. 6(1)(b) of the AI Act does not yet exist.

The second pathway under Art. 6(2) of the AI Act classifies AI systems listed in Annex III to the AI Act as high-risk. These include specific application areas such as biometric identification, critical infrastructure, education, employment, and others that inherently involve significant potential risks to fundamental rights, health, or safety. However, Art. 6(3) of the AI Act introduces a derogation for certain systems listed in Annex III to the AI Act, stating that they will not be classified as high-risk if they do “not pose a significant risk of harm to the health, safety or fundamental rights of natural persons, including by not materially influencing the outcome of decision making”. This applies where the system's role is limited, such as performing narrow procedural tasks, improving previously completed human activities, or preparing assessments without materially influencing decisions.

The first pathway set out in Art. 6(1) of the AI Act (hereinafter “Annex I Section A high-risk AI systems”) aligns with the risk-based approach of other European product safety regulations, while the second pathway set out in Art. 6(2) and (3) of the AI Act (hereinafter “Annex III high-risk AI systems”) “establishes a new assessment of fundamental rights implications.”¹⁴

2.2 The AI Act and the NLF

Early whitepapers, published by the European Commission¹⁵ prior to the release of the first draft of the AI Act, already acknowledged that AI systems can be integrated into many products regulated by other product safety regulations, creating a risk of duplicate conformity assessment procedures. Even at this early stage in the development of the AI Act, the European Commission sets out the clear goal of avoiding such duplicate assessments by integrating the conformity assessment procedures of such AI systems into “the conformity assessment mechanisms that already exist” for the respective products.

The first draft of the AI Act¹⁶ then shows *how* these duplicate checks should be avoided: The draft is “based on and entwined with the New Legislative Framework”¹⁷, which is the framework upon which much of the Union harmonisation legislation regulating products of which AI systems might be components is

¹³ Hannah Ruschemeier and Jascha Bareis, ‘Searching for Harmonised Rules: Understanding the Paradigms, Provisions and Pressing Issues in the Final EU AI Act’ (2024) SSRN <https://www.ssrn.com/abstract=4876206> accessed 11 February 2026.

¹⁴ *ibid.*

¹⁵ European Commission, ‘White Paper on Artificial Intelligence: A European Approach to Excellence and Trust’ COM (2020) 65 final.

¹⁶ European Commission, ‘Proposal for a Regulation of the European Parliament and of the Council laying down harmonised rules on Artificial Intelligence (Artificial Intelligence Act) and amending certain Union legislative acts’ COM (2021) 206 final.

¹⁷ Veale and Zuiderveen Borgesius (n 6).

grounded. The NLF provides a comprehensive legal structure for placing products on the market, aiming to ensure a high level of product safety and the frictionless functioning of the single market. Its foundation rests on Regulation (EC) No 765/2008, which, among other things, formalises a system in which private conformity assessment bodies verify conformity with product (and other) requirements while being assessed and monitored by a single National Accreditation Body (NAB) operating as a sovereign, non-profit public authority. Complementing this, Decision No 768/2008/EC introduces a standard template for drawing up harmonised legislation, unifying essential aspects such as definitions, obligations for economic operators, and a modular framework for conformity assessment procedures.

By relying on the NLF (i.e., the template from Decision No 768/2008/EC and building on Regulation (EC) No 765/2008), the AI Act is able to integrate the conformity assessment procedures for AI systems regulated by other Union harmonisation legislation into the procedures already established under those legal acts, provided they are based on the NLF. This integration is possible because both are based on the same general principles. Thus, using the NLF ensures the legal coherence that enables the alignment of the AI Act's conformity assessment procedures with those of existing sectoral Union harmonisation regulations.¹⁸

2.3 The Selection of Conformity Assessment Procedures in the AI Act

Art. 43 of the AI Act determines which conformity assessment procedures are to be applied for different types of high-risk AI systems. These procedures vary mainly depending on the grounds on which an AI system is classified as high-risk.

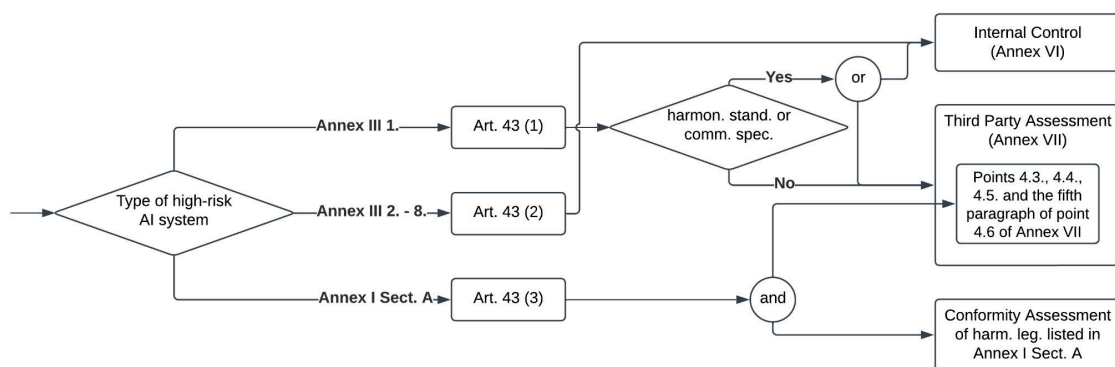


Figure 1. Conformity assessment procedures according to Art. 43 of the AI Act (simplified). Figure created by the authors.

For high-risk AI systems listed in point 1 of Annex III to the AI Act (Biometrics), providers can choose between two options if harmonised standards or common specifications are fully applied: “Conformity assessment procedure based on internal control”, as detailed in Annex VI to the AI Act, and “Conformity based on an assessment of the quality management system (QMS) and an assessment of the technical documentation” with the involvement of a notified body, as detailed in Annex VII to the AI Act. However, if harmonised standards or specifications are not available or not fully applied, the provider must follow the stricter procedure in Annex VII to the AI Act (Art. 43(1) of the AI Act),¹⁹ which largely mirrors Module H1 of Decision No 768/2008/EC. For high-risk AI systems listed in points 2 to 8 of Annex III to the AI Act, covering application areas such as education, employment, and law enforcement, providers must follow the internal control procedure outlined in Annex VI to the AI Act, “which does not provide for the involvement of a notified body” (Art. 43(2) of the AI Act).

¹⁸ The European Commission's work programme for 2026 contains an initiative for an update of the NLF. Once adopted, this update could also affect conformity assessment procedures under the AI Act. However, a public consultation is still ongoing, and no specific proposal has been published yet. Furthermore, such changes do not come into effect immediately. Changes to modules of Decision No 768/2008/EC would need to be incorporated into the respective legal acts and could be adjusted again in the process. In contrast, while changes to Regulation (EC) No 765/2008 would have an immediate effect, they primarily concern market surveillance and accreditation rather than conformity assessment procedures. Consequently, as the specific implications for conformity assessment procedures remain speculative, a detailed discussion of the upcoming NLF revision is beyond the scope of this article.

¹⁹ Exceptions apply to AI systems used by law enforcement, immigration, or asylum authorities (Art. 43(1) of the AI Act). These fall outside the scope of this article.

For AI systems classified as high-risk under Art. 6(1) of the AI Act, conformity assessments are only foreseen for those regulated by Union harmonisation legislation listed in Annex I Section A to the AI Act. Here, Art. 43(3) of the AI Act determines that “the provider shall follow the relevant conformity assessment procedure as required under those legal acts.” In addition to these existing procedures, the requirements for high-risk AI systems set out in Chapter III Section 2 of the AI Act shall be part of this assessment, and several elements of the conformity assessment procedures relating to the control of the technical documentation of the AI system set out in points 4.3, 4.4, 4.5 and the fifth paragraph of point 4.6 of Annex VII to the AI Act shall also apply.

In the case of most legal acts listed in Annex I Section A to the AI Act, these procedures largely correspond to modules from Decision No 768/2008/EC.²⁰ There are eight such modules, identified by the letters A to H. These define the responsibilities of the manufacturer as well as the level of involvement of an accredited in-house body or notified third party. Some of these modules include variants. These variants are designed to ensure the necessary level of protection for products with higher risk levels while avoiding the application of more burdensome modules than required.²¹ The only exceptions to using these modules are the Medical Devices Regulation and the In Vitro Diagnostic Medical Devices Regulation. These regulations apply conformity assessment procedures specified within their respective annexes instead.

Currently, no conformity assessment procedure relating to requirements of the AI Act is applicable to AI systems that are classified as high-risk because they are intended to be used as a safety component of a product, or are themselves a product, covered by the Union harmonisation legislation listed in Annex I Section B to the AI Act. This applies to vehicles, for instance. In the future, the conformity assessment of these AI systems will be governed by amendments to the respective legal acts listed in Annex I Section B to the AI Act (Art. 102 to Art. 110 of the AI Act). While there is no timeline specified for these amendments yet,²² the Proposal for the Digital Omnibus on AI²³ proposes to amend Regulation (EU) 2018/1139 (EASA Basic Regulation)²⁴ to account for requirements set out in Chapter III Section 2 of the AI Act in its purview.

Finally, substantial modifications to high-risk AI systems, whether they are distributed further or remain in use by the current deployer, trigger a renewed conformity assessment (Art. 43(4) of the AI Act).

2.4 Requirements for conformity assessment bodies and Preferred Standards

According to Art. 2 of Regulation (EC) No 765/2008, a conformity assessment body is “a body that performs conformity assessment activities including calibration, testing, certification and inspection.” Notified bodies are a specific category of conformity assessment bodies that have been formally appointed and recognised by their competent national authorities to perform conformity assessment procedures as outlined in relevant Union harmonisation legislation, particularly in cases where third-party involvement is mandated. Notified bodies are required to function with competence, neutrality, transparency, independence, impartiality, and without discrimination. To fulfil their responsibilities effectively, they must have access to qualified personnel with adequate and relevant expertise to perform conformity assessments in line with the applicable Union harmonisation legislation. Accreditation is the preferred method for notified bodies to demonstrate their technical competence.²⁵

²⁰ European Commission, (n 5) 70-71. Modules, as defined under Decision No 768/2008/EC, are standardised building blocks used to structure conformity assessment procedures in Union harmonisation legislation. Each module specifies requirements for evaluating product compliance during either the design phase, the production phase, or both. A conformity assessment procedure can consist of one module covering both phases or two separate modules addressing each phase individually. The modular approach provides consistency across sectors while enabling flexibility to ensure that the procedures are proportionate to the risks involved and meet the highest safety standards.

²¹ European Commission, (n 5) 74.

²² See also AI Act, recital 49.

²³ European Commission, ‘Proposal for a Regulation of the European Parliament and of the Council amending Regulations (EU) 2024/1689 and (EU) 2018/1139 as regards the simplification of the implementation of harmonised rules on artificial intelligence (Digital Omnibus on AI)’ COM (2025) 836 final.

²⁴ Regulation (EU) 2018/1139 of the European Parliament and of the Council of 4 July 2018 on common rules in the field of civil aviation and establishing a European Union Aviation Safety Agency, and amending Regulations (EC) 2111/2005, (EC) 1008/2008, (EU) 996/2010, (EU) 376/2014 and Directives 2014/30/EU and 2014/53/EU, and repealing Regulations (EC) 552/2004 and (EC) 216/2008 and Council Regulation (EEC) 3922/91 [2018] OJ L 212/1.

²⁵ European Commission, (n 5) 81-94.

Regulation (EC) No 765/2008 defines accreditation as the “attestation by a national accreditation body that a conformity assessment body meets the requirements set by harmonised standards and, where applicable, any additional requirements including those set out in relevant sectoral schemes, to carry out a specific conformity assessment activity.” The harmonised standards applicable in this case are the EN ISO/IEC 17000 series. These standards specify requirements for conformity assessment bodies, based on the activities that they perform, and include:

- EN ISO/IEC 17020²⁶ for inspection bodies,
- EN ISO/IEC 17021-1²⁷ for bodies providing audit and certification of management systems,
- EN ISO/IEC 17025²⁸ for testing and calibration laboratories, and
- EN ISO/IEC 17065²⁹ for bodies certifying products, services, and processes.³⁰

Accreditation based on these standards ensures that conformity assessment bodies operate with technical competence, impartiality, and consistency in their assessments.³¹

The determination of which standard applies to a specific conformity assessment body depends on the respective regulation or directive, as well as the specific conformity assessment procedure being conducted. It is established either within the regulation itself, via delegated acts by the European Commission or through implementing acts by Member States. Where a conformity assessment body demonstrates its conformity with the criteria laid down in the designated standard, the respective Union harmonisation legislation presumes that this body complies with the requirements set out in this legal act for notified bodies in so far as the applicable standards cover those requirements (“presumption of conformity”, see, e.g., Article 32 of the AI Act).

The European co-operation for Accreditation (EA) complements this system by promoting a harmonised approach based on expert opinions for selecting the adequate standard for specific conformity assessment procedures across the EU. These “Preferred Standards” are published in the EA’s Report on Accreditation for Notification (AfN Report).³² They are not legally binding but provide key expert opinion on which standard should be selected in case specific standards have not yet been established by the EU or Member States. For instance, while neither the EU nor Member States have determined a specific standard to be applicable to conformity assessment bodies conducting conformity assessments based on Annex VII to the AI Act, EA has already designated EN ISO/IEC 17065 as the Preferred Standard for this procedure, thereby providing a basis for harmonised decision-making within the EU.³³

Thus, Preferred Standards provide a solid foundation for analysing which requirements apply to conformity assessment bodies in the EU in various contexts. Through this harmonisation, Preferred Standards are intended to promote mutual trust between the accreditation systems of the EU Member States.³⁴

²⁶ DIN Media, ‘DIN EN ISO/IEC 17020:2012-07 Conformity Assessment - Requirements for the Operation of Various Types of Bodies Performing Inspection (ISO/IEC 17020:2012)’ (German and English Version EN ISO/IEC 17020:2012, DIN Media 2012).

²⁷ DIN Media, ‘DIN EN ISO/IEC 17021-1:2015-11 Conformity Assessment - Requirements for Bodies Providing Audit and Certification of Management Systems - Part 1: Requirements (ISO/IEC 17021-1:2015)’ (German and English Version EN ISO/IEC 17021-1:2015, DIN Media 2015).

²⁸ DIN Media, ‘DIN EN ISO/IEC 17025:2018-03 General Requirements for the Competence of Testing and Calibration Laboratories (ISO/IEC 17025:2017)’ (German and English Version EN ISO/IEC 17025:2017, DIN Media 2018).

²⁹ DIN Media, ‘DIN EN ISO/IEC 17065:2013-01 Conformity Assessment - Requirements for Bodies Certifying Products, Processes and Services (ISO/IEC 17065:2012)’ (German and English Version EN ISO/IEC 17065:2012, DIN Media 2013).

³⁰ Please note that there are further standards specifying requirements for conformity assessment bodies. However, these are less relevant in the context of the AI Act.

³¹ Henk J de Vries and others, ‘Conformity Assessment’ in Wilfried Hesser (ed), *Standardization in Companies and Markets* (Helmut-Schmidt-Universität, Universität der Bundeswehr Hamburg 2010).

³² European co-operation for Accreditation, ‘Accreditation for Notification (AfN)’ (2025) <https://european-accreditation.org/wp-content/uploads/2023/04/AFN-Project-April-2025.pdf>.

³³ *ibid.*

³⁴ European co-operation for Accreditation, ‘One Voice - The Definition of the Preferred Accreditation Standard’ (2023) <https://european-accreditation.org/wp-content/uploads/2023/01/One-voice-report-January-2023.pdf>; Blue Guide (n 5).

3. Overview of the mapping approach

This section outlines the mapping approach. It links specific conformity assessment procedures, as outlined in the AI Act itself and in other Union harmonisation legislation listed in Annex I Section A to the AI Act, to different types of high-risk AI systems. A cross table provides an overview of these links. It illustrates which conformity assessment procedures (or combinations thereof) are applicable to specific product categories within the respective legal acts.

The cross table contains all standard, supplementary, and alternative procedures on the y-axis and all relevant product categories listed in the AI Act and the legal acts from Annex I Section A to the AI Act on the x-axis. A cross (X) in the table indicates that a conformity assessment procedure (or a combination thereof) can be used to assess a product of the respective product category. Thereby, the table allows the identification of the available conformity assessment procedures for each product category. Subscript numbers denote possible alternatives. For instance, if for a given product group

- Module B and Module C2 are marked with X_1
- Module G is marked with X_2 and
- Module H1 is marked with X_3

then the provider has the choice between the following three options:

- 1) combining the conformity assessment procedures described in Module B and Module C2,
- 2) using the conformity assessment procedure described in Module G, and
- 3) using the conformity assessment procedure described in Module H1.

The results of the mapping process are documented in Appendices A and B. Appendix A provides a list of all conformity assessment procedures. It contains the title of each procedure and the Union harmonisation legislation where it was identified. Appendix B contains the cross table. Further explanatory notes, for example regarding additional instructions for the use of specific modules in a given context, are provided below the respective table in Appendix B.

4. Key findings on conformity assessment procedures for AI systems

Based on the comprehensive overview provided by the cross table (Appendix B), this section categorizes the applicable conformity assessment procedures and identifies patterns in how they are assigned to different categories of products in the respective legal acts of Annex I Section A of the AI Act. Furthermore, it outlines indirect findings regarding the specific requirements for conformity assessment bodies that can be derived from the conformity assessment procedures identified in the cross table.

4.1 Overview: Applicable conformity assessment procedures and the role of third-party assessments

The mapping shows that a large variety of conformity assessment procedures are applicable to products regulated by Union harmonisation legislation listed in Annex I Section A to the AI Act. In fact, each module of Decision No 768/2008/EC is applicable to some products regulated by one of these legal acts.

However, not all of these conformity assessment procedures are relevant to the AI Act. Several conformity assessment procedures are to be carried out without the involvement of a third party. These include, for instance, Module A and Module C of Decision No 768/2008/EC and Annex XIII to the Medical Devices Regulation. Furthermore, other modules such as Modules A1, A2, C1, and C2 of Decision No 768/2008/EC allow for the involvement of a third party in the conformity assessment procedure but do not prescribe it.³⁵

AI systems are classified as high-risk AI systems according to Art. 6(1)(b) of the AI Act only if the product “whose safety component pursuant to point (a) is the AI system, or the AI system itself as a product, is

³⁵ For brief descriptions of the respective modules, see Appendix A. For the full description of the respective conformity assessment procedures, see Annex II to Decision No 768/2008/EC as well as the annexes of the respective Union harmonisation legislation.

required to undergo a third-party conformity assessment [*emphasis added*], with a view to the placing on the market or the putting into service of that product pursuant to the Union harmonisation legislation listed in Annex I". Consequently, if a product does not require a third-party conformity assessment, it is not classified as high-risk under the AI Act, even if it incorporates an AI system as a safety component.

However, some of the procedures that do not prescribe the involvement of a third party cannot be used independently. For instance, Module C always needs to be combined with Module B (cf. Annex II Decision No 768/2008/EC). While Module C does not prescribe the involvement of a third party, Module B does. Therefore, product categories for which Art. 6(1) (a) of the AI Act applies and for which (only) the combination of Modules B and C is selectable in the respective Union harmonisation legislation are classified as high-risk AI systems.

4.2 Patterns of divergence between sectoral procedures and Annex VII to the AI Act

Strikingly, many legal acts listed in Annex I Section A to the AI Act allow for the selection of conformity assessment procedures that differ fundamentally from those in Annex VII to the AI Act for certain product categories. Annex VII itself is never explicitly referenced, as these legal acts do not employ the AI Act's approach to rely on conformity assessment procedures laid down in other Union harmonisation legislation. However, as outlined in Section 2.3, Annex VII to the AI Act largely mirrors Module H1 of Decision No 768/2008/EC. Yet, Module H1 is also rarely applicable in the legal acts listed in Annex I Section A to the AI Act.³⁶ Instead, a diverse set of alternative conformity assessment procedures, particularly the modules established in Decision No 768/2008/EC, are implemented (cf. Appendix B).

One key difference between many of these conformity assessment procedures and Annex VII to the AI Act is the absence of mandatory audits and surveillance of the QMS (including post-market monitoring system). Examples are Modules B, C, F, and G.

Some of those procedures (or combinations thereof) are selectable for at least some product categories under legal acts listed in Annex I Section A to the AI Act. Thus, if an AI system is installed as a safety component in a product that is assessed in accordance with one of these modules based on the respective legal act listed in Annex I Section A to the AI Act, certain organisational aspects are not considered. This is a significant deviation from the procedures detailed in the AI Act (Annex VI and Annex VII), where the assessment of the QMS plays a pivotal role.

Furthermore, the mapping shows that some product classes that are considered to present higher risks in the relevant Union harmonisation legislation are nevertheless not subject to third-party conformity assessment procedures. For instance, this is the case under Art. 52(8) Medical Devices Regulation, which concerns custom-made medical devices. Even though some of these belong to device classes associated with a higher risk where third-party conformity assessment is generally required, this obligation does not apply to custom-made medical devices (with the exception of Class III *implantable* custom-made devices).³⁷ Under the respective legal acts, the safety of these products is ensured by means other than a third-party conformity assessment. As noted in Section 4.1, this non-reliance on third-party conformity assessments affects risk classification under the AI Act.

³⁶ Exceptions are to be found in Directive 2014/33/EU of the European Parliament and of the Council of 26 February 2014 on the harmonisation of the laws of the Member States relating to lifts and safety components for lifts and Regulation (EU) 2016/424 of the European Parliament and of the Council of 9 March 2016 on cableway installations and repealing Directive 2000/9/EC.

³⁷ Examples include custom-made software solutions intended to provide information which is used to make decisions for diagnostic or therapeutic purposes, if such decisions have an impact that may cause death or an irreversible deterioration of a person's state of health. These are classified as class III according to Rule 22 of Annex VIII to the Medical Devices Regulation but are not implantable. At the same time, these systems seem particularly relevant as AI can be used for personalised medical solutions (see, e.g., Kevin B Johnson and others, 'Precision Medicine, AI, and the Future of Personalized Health Care' (2021) 14 Clinical and Translational Science 86.).

4.3 Requirements for conformity assessment bodies and Preferred Standards

Lastly, there are indirect findings concerning ‘Preferred Standards’ (see Section 2.4) that can be inferred from the more direct findings regarding the applicable conformity assessment procedures. In the case of other EU harmonisation legislation besides the AI Act, the conformity assessment procedures defined in the respective legal acts are listed in the AfN Report and linked directly to a specific Preferred Standard. However, as shown above, the AI Act deviates from other Union harmonisation legislation based on the NLF in that it does not list all relevant conformity assessment procedures in its legal text. Instead, it refers to the conformity assessment procedures laid down in a multitude of other legal acts. Therefore, the AfN Report cannot simply link conformity assessment modules to specific standards, as the various legal acts upon which the AI Act relies to assign conformity assessment procedures might link these modules to different Preferred Standards.

However, based on the identification of conformity assessment procedures via the mapping approach, the requirements for conformity assessment bodies conducting these conformity assessments can be derived from the AfN Report. Using the report, a Preferred Standard can be determined for each conformity assessment procedure relevant to the AI Act that is listed in Appendix B. This can be achieved by identifying the procedure in the report’s table concerning the respective legal act listed in Annex I Section A to the AI Act.

For conformity assessment bodies assessing AI systems following the procedures outlined in Annex VII to the AI Act, the AfN Report designates EN ISO/IEC 17065 (“Requirements for bodies certifying products, processes and services”) as the Preferred Standard, arguing that it “is considered to be the best fit as [Annex VII] is based on more than just a QMS audit, it includes assessment of technical documentation which falls under product certification.”³⁸ Similarly, the AfN Report designates EN ISO/IEC 17065 as the Preferred Standard for most selectable modules in the legal acts listed in Annex I Section A to the AI Act.

However, there are exceptions where other requirements are imposed on conformity assessment bodies. This is mainly the case where Module H (“Conformity based on full quality assurance”) is applied. This is an option for certain product categories, e.g., in Regulation (EU) 2023/1230 (“Machinery Regulation”), Directive 2013/53/EU (“Recreational Craft Directive”), or Directive 2014/53/EU (“Radio Equipment Directive”). Here, the AfN Report designates EN ISO/IEC 17021-1 (“Requirements for bodies providing audit and certification of management systems”) as the Preferred Standard in several instances. Yet, in these cases, the AfN Report highlights further requirements for the conformity assessment bodies. These additional requirements specify that the auditor’s competence must include specific product knowledge, defined as the ability “to make professional judgments related to product requirements where required. To this end, fulfilment of clauses 6.1.2, 6.1.3 and 6.1.6 to 6.1.10 in EN ISO/IEC 17020 (“Requirements for the operation of various types of bodies performing inspection”) shall be demonstrated.”³⁹

In three further cases, EN ISO/IEC 17020 is assigned as the Preferred Standard. In these cases, no further requirements apply to the conformity assessment body.

5. Discussion

5.1 Risk classification and its dependence on selectable procedures laid down in other Union harmonisation legislation

5.1.1 The mismatch between sectoral risk classification and AI-specific risks

As outlined in Section 4, several products regulated in legal acts listed in Annex I Section A to the AI Act do not prescribe the involvement of a third party. Therefore, according to the AI Act’s approach to risk classification, even if the AI system is intended to be used as a safety component of such a product, or the

³⁸ European co-operation for Accreditation, (n 32).

³⁹ European co-operation for Accreditation, EA Document on Accreditation for Notification Purposes (EA-2/17 M: 2020, 2020) <https://european-accreditation.org/wp-content/uploads/2018/10/ea-2-17-m.pdf>.

AI system is itself such a product, the AI system is not considered a high-risk AI system (Art. 6(1) of the AI Act). Prima facie, linking the risk categorisation under the AI Act to the risk classification of the product [...] appears rational. For instance, an AI system used as a safety component of a machine whose malfunction poses a risk of injury is appropriately classified as a high-risk AI system under the AI Act, whereas an AI system used as a safety component of a machine that does not pose such a risk of injury might appropriately be classified differently.

However, this approach to risk classification exhibits a critical limitation: it does not consider the impact that AI-based components might have on the overall risk of such already regulated products. The classification rules for AI systems listed under Art. 6(1) do not consider that the use of artificial intelligence in particular can lead to a significant increase in the risks posed by products not previously subject to third-party conformity assessments. Particular characteristics of AI systems and their possible interactions with product-specific risks are not adequately taken into account. This is surprising given that this problem was already raised in comments and discussions⁴⁰ on the 2021 Draft of the AI Act.⁴¹ Furthermore, Recital 64 of the AI Act emphasises this issue, stating that, for instance, “machinery or medical devices products incorporating an AI system might present risks not addressed by the essential health and safety requirements set out in the relevant Union harmonised legislation, as that sectoral law does not deal with risks specific to AI systems.” The AI Act’s unusual approach to risk classification, which, in contrast to the approaches of other Union harmonisation legislation based on the NLF, relies on the risk classification approaches of other legal acts, thus fails to address this challenge albeit explicitly acknowledging and highlighting it in its recitals.

Sectoral regulations partly mitigate this shortcoming of the AI Act. For instance, Regulation (EU) 2023/1230 (Machinery Regulation), the recast and successor to Directive 2006/42/EC, assigns conformity assessment procedures with the involvement of a third party to all machinery or components of machinery “with fully or partially self-evolving behaviour using machine learning approaches ensuring safety functions” (Annex I Part A to Regulation (EU) 2023/1230). This achieves the classification of such products or components as high-risk AI systems via a regulatory workaround: the use of the aforementioned AI components as safety components automatically ensures that the requirement in Art. 6(1)(b) of the AI Act (involvement of a third party) is met. As Johner⁴² points out, similar arrangements exist in the Medical Devices Regulation. In the case of machinery, this approach partly solves the issue raised in Recital 64 of the AI Act, albeit due entirely to the relevant provisions of the Machinery Regulation and not due to (or rather: despite) the classification rules of the AI Act. However, even in the Machinery Regulation, this indirect classification mechanism exists only for AI systems “with fully or partially self-evolving behaviour using machine learning approaches”. Moreover, there are no comparable provisions in most of the other legal acts listed in Annex I Section A to the AI Act.

5.1.2 The role of harmonised standards

A further issue regarding risk classification and its reliance on selectable conformity assessment procedures involves the role of harmonised standards. Certain legal acts listed in Annex I Section A to the AI Act allow, or in the case of Directive 2009/48/EC (Toys Safety Directive)⁴³ requires the manufacturer to bypass third-party conformity assessment for specific categories of products if harmonised standards are applied during production. Examples include machines or related products that are of a category listed in Annex I Part B to the Machinery Regulation.⁴⁴

⁴⁰ See, e.g., Sebastian Steinbach and Johannes Kröhnert, ‘Stellungnahme: Vorschlag Der EU-Kommission Für Ein Gesetz Über Künstliche Intelligenz (COM(2021) 206)’ (TÜV Verband 2021) 4 <https://www.tuev-verband.de/index.php?elD=dumpFile&t=f&f=2110&token=de53226ed9443a29b40681835523f430834b10e6>.

⁴¹ European Commission, (n 16).

⁴² Johner (n 11).

⁴³ Directive 2009/48/EC of the European Parliament and of the Council of 18 June 2009 on the safety of toys [2009] OJ L170/1.

⁴⁴ Regulation (EU) 2023/1230 of the European Parliament and of the Council of 14 June 2023 on machinery and repealing Directive 2006/42/EC of the European Parliament and of the Council and Council Directive 73/361/EEC [2023] OJ L165/1.

Based on a strict textual interpretation of Art. 6(1) of the AI Act, the systems in question would not be classified as high-risk AI systems, as the provider is not obliged to undergo a third-party conformity assessment.⁴⁵ However, there is a systematic argument in favour of interpreting Art. 6(1)(b) of the AI Act differently: the absence of a requirement for third-party conformity assessment does not preclude classification as a high-risk AI system if this absence is contingent on the application of harmonised standards. According to the third subparagraph of Art. 43(3) of the AI Act, product manufacturers who are permitted by a legal act listed in Annex I Section A to the AI Act to opt out of a third-party conformity assessment by applying harmonised standards may only do so if they also apply harmonised standards covering the requirements of the AI Act. Since Art. 43 of the AI Act regulates the conformity of high-risk AI systems, Art. 6(1) of the AI Act must be interpreted as proposed here. Otherwise, the third subparagraph of Art. 43(3) of the AI Act would be rendered obsolete. In other words, for the sole purpose of risk classification, one must assume that no harmonised standards were applied for determining whether a third-party conformity assessment is required by the respective legal act.

As the cross table in Appendix B illustrates, the group of high-risk AI systems according to this interpretation of Art. 6(1)(b) of the AI Act is significantly larger a strict textual interpretation would suggest. This broader scope captures numerous product categories where the link between third-party conformity assessments and the application of harmonised standards exists, including toys, certain types of machinery, and certain types of watercraft.

5.1.3 Regulatory gaps through sectoral exceptions

Lastly, exceptions in the risk classification approaches of other Union harmonisation legislation listed in Annex I Section A show a further crucial shortcoming of the AI Act's approach to risk classification. For instance, the fact that medical devices associated with higher risk are not required to undergo third-party conformity assessments if they are custom-made devices (with the exception of Class III *implantable* custom-made devices; see Section 4) is one such exception.⁴⁶ This creates a highly problematic regulatory gap: because the Medical Devices Regulation provides an option to bypass third-party assessments for most custom-made devices, any AI systems used as safety components therein evade high-risk classification under the AI Act. Thus, not only is a conformity assessment by a third party not required for these devices, but the requirements for high-risk AI systems in Chapter III Section 2 of the AI Act as well as requirements for providers of high-risk AI systems in Chapter III Section 3 of the AI Act do not apply, despite the risk classification within the Medical Devices Regulation and the use of the AI system as a safety component. Crucially, the AI Act lacks a fall-back provision to capture these specific sectoral exemptions. The possibility that Union harmonisation legislation listed in Annex I Section A to the AI Act may waive third-party conformity assessments despite assigning a high risk to a product does not appear to be considered in the AI Act. Not taking account of such exceptions constitutes as a failure in the legislative design that requires urgent rectification.

5.2 Suitability of conformity assessment procedures for AI systems

5.2.1 Requirements for conformity assessment procedures in the NLF

In the Blue Guide, the European Commission details how the most suitable conformity assessment procedures should be selected in Union harmonisation legislation based on the NLF. It focuses on sector-specific needs and advises the legislator to balance the burden of regulatory requirements with the protection of public interests. More precisely, the legislator is instructed to avoid overly burdensome conformity assessment procedures while simultaneously ensuring adequate safeguards that correspond to

⁴⁵ See also Steinbach and Kröhnert (n 40) 4.

⁴⁶ Examples include custom-made software solutions intended to provide information which is used to make decisions with diagnostic or therapeutic purposes, if such decisions have an impact that may cause death or an irreversible deterioration of a person's state of health. These are classified as class III according to Rule 22 Annex VIII to the Medical Devices Regulation but are not implantable. At the same time, these systems seem particularly relevant as AI can be used for personalised medical solutions (see, e.g., Johnson and others (n 37)).

the “product type, associated risks, and production methods.”⁴⁷ In the case of the AI Act, these risks can relate to health, safety, and fundamental rights.

This approach of balancing the burden of regulatory requirements with public interest protection is also reflected in other Union harmonisation legislation based on the NLF, such as the legal acts listed in Annex I Section A to the AI Act. These acts categorise products into different classes or categories based on such criteria and assign corresponding conformity assessment procedures to them. For example, the Medical Devices Regulation assigns classes (I, IIa, IIb, III) based on the intended purpose and associated risks, considering factors like invasiveness and potential toxicity of materials, whereas Directive 2013/53/EU (Recreational Craft Directive) assigns different conformity assessment procedures for different sizes of watercraft as well as for specific assessment areas such as noise emissions or exhaust emissions.

5.2.2 AI-specific challenges for conformity assessment procedures

The AI Act’s approach of utilising the conformity assessment procedures laid down in other Union harmonisation legislation for Annex I Section A high-risk AI systems makes it impossible to take similar factors concerning AI into account. The respective legal acts were drafted before the AI Act and mostly do not consider the possibility that AI could one day be incorporated into products regulated by them. It is therefore not surprising that most legal acts assign different conformity assessment procedures than those set out in the AI Act for stand-alone AI systems, because these acts did not consider the possibility of an AI system serving as a safety component when assigning conformity assessment procedures. The conformity assessment procedure set out in Annex VII to the AI Act considers the specific technical features of AI systems, whereas the conformity assessment procedures set out in sectoral Union harmonisation legislation without a specific focus on AI do not.

This raises the question of the extent to which these other conformity assessment procedures are suitable for assessing AI systems and thus safeguarding health, safety, and fundamental rights. Two aspects of conformity assessment procedures seem particularly crucial regarding AI systems: first, whether the organisational structure behind the AI system is considered in conformity assessments, alongside the system itself, and second, whether continuous surveillance of the system under operating conditions takes place.

The question of whether the organisational structure behind the AI system is considered in conformity assessments, alongside the system itself, is crucial. This is because especially in the case of continuously learning systems or black-box systems, a mere examination of the product without an assessment of the underlying organisation’s operating principles, e.g., based on a QMS, is inconclusive. Features of the AI system might evolve and experience performance degradation due to continuous learning⁴⁸ or might not be adequately predictable due to black-box characteristics⁴⁹. These features of many AI systems severely limit the ability to directly assess the system in a one-time inspection. How an organisation deals with changing system behaviour and unforeseen events is therefore essential.⁵⁰

Conversely, continuous surveillance of the system under operating conditions is crucial because whether an organization actually adheres to the processes outlined in its QMS and if the features of an evolving AI system continuously meet legal requirements can only be determined over time. Therefore, continuous

⁴⁷ Blue Guide, (n 5) 70–71.

⁴⁸ See, e.g., Anton Khritankov, ‘Hidden Feedback Loops in Machine Learning Systems: A Simulation Model and Preliminary Results’ in Dietmar Winkler and others (eds), *Software Quality: Future Perspectives on Software Engineering Quality*, vol 404 (Springer International Publishing 2021); Katharina A Zweig, Georg Wenzelburger and Tobias D Krafft, ‘On Chances and Risks of Security Related Algorithmic Decision Making Systems’ (2018) 3 *European Journal for Security Research* 181.

⁴⁹ See, e.g., Amina Adadi and Mohammed Berrada, ‘Peeking Inside the Black-Box: A Survey on Explainable Artificial Intelligence (XAI)’ (2018) 6 *IEEE Access* 52138; Vikas Hassija and others, ‘Interpreting Black-Box Models: A Review on Explainable Artificial Intelligence’ (2024) 16 *Cognitive Computation* 45.

⁵⁰ Furthermore, the notion of “trustworthy AI” – the promotion of which is a core objective of the EU with the AI Act (see, e.g., Recital 1 of the AI Act) – is only conceivable if AI systems are regarded as socio-technical systems rather than mere technical systems; Gernot Rieder, Judith Simon and Pak-Hang Wong, ‘Mapping the Stony Road toward Trustworthy AI: Expectations, Problems, Conundrums’ in Marcello Pelillo and Teresa Scantamburlo (eds), *Machines We Trust* (The MIT Press 2021).

surveillance of the system under operating conditions is essential for conclusive conformity assessments. This view aligns with EN ISO/IEC 17000:2020 (Conformity Assessment - Vocabulary and general principles) A.5.1⁵¹, which states that the need for surveillance activities is determined by the needs of the users, such as when an object of conformity assessment changes over time or when ongoing proof of compliance is required for continuously produced products or services.

5.2.3 Regulatory blind spots

The regulator's intended conformity assessment procedure with the involvement of a third party is outlined in Annex VII to the AI Act. This conformity assessment procedure is tailored by the legislator for high-risk AI systems, based on an assessment of the quality management system (point 3) and the technical documentation (point 4). It also requires surveillance of the approved QMS, including additional tests of the AI system itself. Part of the assessed QMS according to Article 17(1)(h) of the AI Act is "the setting-up, implementation and maintenance of a post-market monitoring system, in accordance with Article 72", taking into account information from specific application contexts at a specific deployer (point 5). This allows "the provider to evaluate the continuous compliance of AI systems with the requirements set out in Chapter III, Section 2" (Art. 72(2) of the AI Act) while the system is in use by the deployer. The surveillance of the QMS makes it possible to consider the post-market monitoring in the conformity assessment. Assessments following Annex VII to the AI Act thus largely meet the criteria outlined above.

However, as shown in Section 2.3, Annex VII to the AI Act applies only to high-risk AI systems listed in point 1 of Annex III to the AI Act, where harmonised standards or common specifications are not fully available or applied. Other Annex III high-risk AI systems must follow the internal control outlined in Annex VI to the AI Act. In addition to the absence of third-party involvement, only a one-time assessment of the QMS, as well as the post-market monitoring system, is required. Annex VI to the AI Act does not contain an equivalent for the surveillance of the QMS as required in Annex VII point 5.

For Annex I Section A high-risk AI systems, the provider must integrate the assessment of conformity with the requirements of the AI Act into the conformity assessment procedure required by the applicable legal act listed in Annex I Section A to the AI Act. The "specific logic, methodology or general structure of conformity assessment under the relevant Union harmonisation legislation" is not altered (Recital 124 of the AI Act). Art. 43(3) of the AI Act provides that only "Points 4.3, 4.4, 4.5 and the fifth paragraph of point 4.6 of Annex VII shall also apply", which concern only the assessment of the technical documentation as well as potential tests conducted by the conformity assessment body. In contrast, the assessment of the QMS, as outlined in Annex VII point 3 to the AI Act, is not integrated into these assessments. Thus, if the respective Union harmonisation legislation does not prescribe the assessment of the QMS of the provider, this is also not prescribed if the regulated product contains a high-risk AI system as a component.⁵²

As outlined above, however, there is a valid rationale for assigning a central role to the assessment and surveillance of the QMS for the AI system including the post-market monitoring system in Annex VII to the AI Act. Without taking the QMS into account, the assessment of continuously learning or black-box AI systems remains inconclusive and represents a departure from the fundamental principles of the NLF. The Blue Guide states that "the least onerous modules should be selected **taking into account the type of products and hazards involved** [*emphasis added*]."⁵³ Yet, by relying on the conformity assessment procedures chosen in Union harmonisation legislation without considering the impact of AI, the AI Act does not sufficiently take into account the fact that products with and without AI differ not only in the level of risk they pose (see Section 5.1), but also in the *types* of risks they pose. Conformity assessment procedures suitable for identifying hazards that may arise from deficiencies in physical production processes are not necessarily suitable for assessing hazards that may arise for fundamental rights. For instance, they might not allow for the detection of performance degradation of AI systems due to, e.g., skewed feedback loops or user interaction, which may

⁵¹ DIN Media, 'DIN EN ISO/IEC 17000:2020-09 Conformity Assessment - Vocabulary and General Principles (ISO/IEC 17000:2020) (Trilingual Version EN ISO/IEC 17000:2020, DIN Media 2020).

⁵² This is the case, e.g., if the combination of Module B and Module C of Decision No 768/2008/EC is applied.

⁵³ Blue Guide (n 5) 71.

result in AI systems becoming increasingly biased over time. The AI Act seemingly prioritises the avoidance of additional burdens through non-aligned assessment procedures over adequately addressing the risks posed by high-risk AI systems.

The European Commission has apparently recognised this shortcoming. In its proposal for the Digital Omnibus on AI,⁵⁴ it proposes changes to Article 43(3) of the AI Act. These changes determine that for high-risk AI systems covered by the Union harmonisation legislation listed in Section A of Annex I to the AI Act, the assessment of the quality management system set out in Article 17 and Annex VII shall also apply. Should the Digital Omnibus on AI be adopted, an audit of the QMS would therefore be mandatory for both Annex III high-risk AI systems and Annex I Section A high-risk AI systems.

Conversely, however, the Digital Omnibus on AI deletes the third sentence of the current Article 43(3) of the AI Act, which determines that points 4.3, 4.4, 4.5 and the fifth paragraph of point 4.6 of Annex VII shall also apply in cases where the relevant conformity assessment procedures as required under the legal acts listed in Annex I Section A are applied. In cases where these conformity assessment procedures rely on quality assurance only (i.e., where Module H is applied), an assessment of the AI system itself based on tests or inspections would not be mandatory anymore. Thus, while the AI Act in its current state in some cases allows for assessing only the AI system itself without accounting for relevant organisational aspects (especially the QMS), adopting the Digital Omnibus on AI would invert this vulnerability: it would permit for assessing *only* such organisational aspects without assessing the AI system itself. However, a mandatory assessment of both aspects is necessary in order to sufficiently address the risks that AI systems pose to health, safety, and fundamental rights.

Lastly, it should be noted that CE marking for market access does not protect against product liability. Providers should therefore pay close attention to the blind spots of conformity assessment procedures when assessing liability risks. Having undergone a conformity assessment procedure will, in many cases, not permit the conclusion that the system meets all mandatory product safety requirements.⁵⁵

5.3 Preferred Standards relevant to the AI Act

As shown in Section 4, the requirements for conformity assessment bodies are not consistent within the scope of the AI Act. While EN ISO/IEC 17065 is the preferred standard for Annex VII to the AI Act and most applicable conformity assessment procedures in the legal acts listed in Annex I Section A to the AI Act, EN ISO/IEC 17021-1 (with additional requirements regarding product knowledge) and EN ISO/IEC 17020 in some cases also apply.

With regard to EN ISO/IEC 17065, EA's reasoning that it "is considered to be the best fit as it [Annex VII] is based on more than just a QMS audit, it includes assessment of technical documentation which falls under product certification"⁵⁶ is valid. Indeed, based on this standard, requirements for conformity assessment bodies ensure that these bodies are capable of adequately conducting conformity assessments considering both technical and organisational aspects.

In contrast, EN ISO/IEC 17021-1 only focuses on management systems, i.e., organisational aspects. Consequently, a conformity assessment body accredited according to EN ISO/IEC 17021-1 does not have the competence to assess technical systems. However, as shown in Section 4, in all the cases where EN ISO/IEC 17021-1 is applicable in the context of the AI Act, further requirements concerning product knowledge, defined as the ability "to make professional judgments related to product requirements", are imposed. Together, these requirements are therefore also adequate to ensure that notified bodies are competent to assess both the AI system itself and the organisation's QMS.

⁵⁴ European Commission, (n 23).

⁵⁵ Directive (EU) 2024/2853 of the European Parliament and of the Council of 23 October 2024 on liability for defective products and repealing Council Directive 85/374/EEC [2024] OJ L 2024/2853.

⁵⁶ European co-operation for Accreditation, (n 32) 32.

The three assignments of EN ISO/IEC 17020 as the preferred standard (see Section 4) appear, *prima facie*, to be more problematic. This is because inspection bodies do not have the competence to assess QMSs. However, in all three cases, this does not prevent a comprehensive examination of high-risk AI systems. In the case of Directive 2014/68/EU (Pressure Equipment Directive)⁵⁷, EN ISO/IEC 17020 is the preferred standard for Module A2, whereas in the case of Directive 2013/53/EU (Recreational Craft Directive) EN ISO/IEC 17020 is the preferred standard for Module A1. However, neither Module A1 nor Module A2 requires the involvement of a third party and, therefore, the product categories for which they are selectable are not considered high-risk AI under the AI Act in the first place. Accordingly, the AI Act does not require the involvement of a third-party conformity assessment body regardless. The other instance is the conformity assessment procedure from Annex V to Directive 2014/33/EU (Final Inspection for Lifts).⁵⁸ However, this procedure can only be used in combination with Module H1, for which EN ISO/IEC 17065 is the preferred standard. Accordingly, a full assessment of the AI system by competent conformity assessment bodies is also ensured through the combination of these two modules and the combined requirements for the respective conformity assessment bodies involved.

Thus, while the conformity assessment procedures in many legal acts listed in Annex I Section A to the AI Act differ vastly from the conformity assessment procedures outlined in the AI Act itself, the requirements for conformity assessment bodies conducting these conformity assessments largely mirror the ones envisaged in the AI Act. The approach of referencing other legal acts for selecting conformity assessment procedures used in the AI Act therefore does not raise any additional issues regarding the requirements imposed on conformity assessment bodies. Overall, the requirements for conformity assessment bodies set out in Union harmonisation legislation listed in Annex I Section A to the AI Act appear to be well suited in the context of the AI Act.

6. Conclusion

The NLF introduces an approach to conformity assessment procedures that aims to balance flexibility and proportionality with the risks posed by specific products. By enabling legislators to tailor procedures based on product type, associated risks, and other factors, the framework seeks to ensure consistent, high safety standards across sectors. By using the NLF, the AI Act establishes legal coherence with other Union harmonisation legislation built on the same framework, allowing it to align conformity assessment procedures with these legal acts.

However, this article shows that the way the AI Act integrates conformity assessment procedures for Annex I Section A high-risk AI systems represents a deviation from both the basic principles of the NLF and the specific approaches taken in other Union harmonisation legislation based on the NLF. This deviation occurs because the specific properties of the regulated AI system are not decisive for selecting the appropriate procedures in the case of these systems. Instead, the assessment procedure is assigned based on the requirements in existing sectoral legal acts. As a result, the AI Act in many cases does not maintain the necessary balance between flexibility and proportionality with the risks posed by specific AI systems.

Notably, for Annex I Section A high-risk AI systems, the risk classification fails to account for the unique and evolving risks associated with AI. This is striking in light of the risk-based regulatory approach of the AI Act. The conformity assessment modules adopted from other Union harmonisation legislation often centre on traditional product risks, making them insufficient to address AI-specific concerns such as black-box characteristics and continuous learning. The failure to address these risks for many Annex I Section A high-risk AI systems is a critical weakness of the AI Act.

⁵⁷ Directive 2014/68/EU of the European Parliament and of the Council of 15 May 2014 on the harmonisation of the laws of the Member States relating to the making available on the market of pressure equipment [2024] OJ L 189/164.

⁵⁸ Directive 2014/33/EU of the European Parliament and of the Council of 26 February 2014 on the harmonisation of the laws of the Member States relating to lifts and safety components for lifts [2024] OJ L 96/251.

Another weakness is the flexibility given to providers in the choice of conformity assessment procedures. For many product categories, this flexibility permits providers to bypass rigorous evaluations, especially regarding the organisational aspects and continuous surveillance of AI systems in their application contexts. This makes it impossible to determine in these conformity assessments how unanticipated and changing behaviour of AI systems is being handled by these systems' providers. This, in turn, undermines the overall intent of the AI Act, as such less comprehensive assessments may fail to capture risks that emerge over time or arise from the integration of the AI system into broader socio-technical contexts.

A particularly severe deficiency arises with custom-made non-implantable class III medical devices. These remain exempt from key requirements despite posing high risks. This exemption is inconsistent with the AI Act's stated objectives and thus probably unintended by the legislator. This issue should be addressed with urgency.

Conversely, although the preferred standards for conformity assessment bodies in the legal acts listed in Annex I Section A to the AI Act were established without considering the future integration of AI components, they are generally well aligned with the requirements for conformity assessments of AI systems. Standards such as EN ISO/IEC 17065 and EN ISO/IEC 17021-1 (with additional requirements regarding product knowledge) provide a solid foundation for ensuring competent and impartial evaluations.

In summary, while the NLF's approach to conformity assessment offers flexibility and proportionality in principle, its application under the AI Act leaves key risks of high-risk AI systems inadequately addressed. It appears that the legislator prioritises the prevention of additional burdens through non-aligned or non-integrated assessment procedures over the provision of adequate responses to the risks posed by some high-risk AI systems. Therefore, relying on conformity assessment procedures without considering key aspects, such as the QMS (including the setting-up, implementation and maintenance of a post-market monitoring system), poses a significant liability risk for providers. Such blind spots in conformity assessment procedures should be considered by providers in their assessment of liability risks, as CE markings for market access do not protect against product liability.

Lastly, the adequacy of conformity assessments for AI systems in the context of the AI Act depends not only on the conformity assessment procedures discussed in this article. Further factors are crucial, especially the operationalisation of legal requirements into more specific technical requirements. This operationalisation is usually carried out by standardisation bodies (CEN/CENELEC in the case of the AI Act) or by the European Union (in the case of common specifications). The extent to which legal requirements in the AI Act, particularly those concerning fundamental rights, can be translated into technical requirements, and whether the related standardisation process is sufficiently transparent and democratic, remains a contentious issue and is subject to ongoing scrutiny.⁵⁹ However, the development of standards requested by the European Commission in its standardisation request for the AI Act⁶⁰ is still pending, and, as such, these standards cannot yet be conclusively analysed and evaluated. To achieve a more comprehensive analysis of conformity assessments in the context of the AI Act, we encourage future research to assess these standards as soon as they are available. Together with the analysis of conformity assessment procedures carried out in this article, such research would provide a complete picture of conformity assessments under the AI Act.

⁵⁹ Teresa Anjinho, 'How the European Commission Ensures Transparency, Inclusiveness and Accountability in the Adoption of Harmonised Standards Related to Artificial Intelligence' (Case 1974/2025/MIK, 2025) <https://www.ombudsman.europa.eu/en/opening-summary/en/212090>; Smuha and Yeung (n 6).

⁶⁰ European Commission, 'Commission Implementing Decision of 22.5.2023 on a Standardisation Request to the European Committee for Standardisation and the European Committee for Electrotechnical Standardisation in Support of Union Policy on Artificial Intelligence' (2023) 3215 final [https://ec.europa.eu/transparency/documents-register/api/files/C\(2023\)3215_o/de00000001048942?rendition=false](https://ec.europa.eu/transparency/documents-register/api/files/C(2023)3215_o/de00000001048942?rendition=false).

7. Appendix A

Module	Module Title	Legislation
A	Internal production control	Decision No 768/2008/EC
A1	Internal production control plus supervised product testing	Decision No 768/2008/EC
A2	Internal production control plus supervised product checks at random intervals	Decision No 768/2008/EC
B	EC-type examination	Decision No 768/2008/EC
C	Conformity to type based on internal production control	Decision No 768/2008/EC
C1	Conformity to type based on internal production control plus supervised product testing	Decision No 768/2008/EC
C2	Conformity to type based on internal production control plus supervised product checks at random intervals	Decision No 768/2008/EC
D	Conformity to type based on quality assurance of the production process	Decision No 768/2008/EC
D1	Quality assurance of the production process	Decision No 768/2008/EC
E	Conformity to type based on product quality assurance	Decision No 768/2008/EC
E1	Quality assurance of final product inspection and testing	Decision No 768/2008/EC
F	Conformity to type based on product verification	Decision No 768/2008/EC
F1	Conformity based on product verification	Decision No 768/2008/EC
G	Conformity based on unit verification	Decision No 768/2008/EC
H	Conformity based on full quality assurance	Decision No 768/2008/EC
H1	Conformity based on full quality assurance plus design examination	Decision No 768/2008/EC
Lifts Annex V	Final inspection for lifts	Directive 2014/33/EU
PCA	Post construction assessment	Directive 2013/53/EU
AIA Annex VI	Conformity assessment procedure based on internal control	Regulation (EU) 2024/1689
AIA Annex VII	Conformity based on an assessment of the quality management system and an assessment of the technical documentation	Regulation (EU) 2024/1689
MDR Annex II	Technical Documentation	Regulation (EU) 2017/745
MDR Annex III	Technical Documentation on post-market surveillance	Regulation (EU) 2017/745
MDR Annex IX	Conformity assessment based on a quality management system and on assessment of technical documentation	Regulation (EU) 2017/745
MDR Annex X	Conformity assessment based on type-examination	Regulation (EU) 2017/745
MDR Annex XI	Conformity assessment based on product conformity verification	Regulation (EU) 2017/745
MDR Annex XIII	Procedures for custom-made devices	Regulation (EU) 2017/745
IVDR Annex II	Technical Documentation	Regulation (EU) 2017/746
IVDR Annex III	Technical Documentation on post-market surveillance	Regulation (EU) 2017/746
IVDR Annex IX	Conformity assessment based on a quality management system and on assessment of technical documentation	Regulation (EU) 2017/746
IVDR Annex X	Conformity assessment based on type-examination	Regulation (EU) 2017/746
IVDR Annex XI	Conformity assessment based on product quality verification	Regulation (EU) 2017/746

8. Appendix B

Regulation (EU) 2024/1689				
Artificial Intelligence				
Biometrics				
	Annex III point 1	Annex III point 1	Annex III points 2-8	Annex 1 Section A
	applied harmonised standards referred to in Art. 40, or, where applicable, common specifications referred to in Art. 41	harmonised standards referred to in Art. 40, or, where applicable, common specifications referred to in Art. 41 not fully applied		
A				
A1				
A2				
B				
C				
C1				
C2				
D				
D1				conformity assessment procedure as required under the respective legal acts.
E				
E1				
F				
F1				
G				
H				
H1				
AIA Annex VI	X ₁		X ₁	
AIA Annex VII	X ₂	X ₁		

Regulation (EU) 2023/1230				Directive 2009/48/EC		
Machinery				Safety of Toys		
	Annex I Part A	Annex I Part B	Annex I Part B	Not listed in Annex I		
		Application of harmonised standards	Otherwise		Application of harmonised standards	Otherwise
A		X ₁		X ₁	X ₁	
A1						
A2						
B	X ₁	X ₂	X ₂			X ₁
C	X ₁	X ₂	X ₂			X ₁
C1						
C2						
D						
D1						
E						
E1						
F						
F1						
G	X ₂	X ₃	X ₃			
H	X ₃	X ₄	X ₄			
H1						

Directive 2013/53/EU								
Recreational Craft and Personal Watercraft								
Design & Construction								
Recreational Watercraft						Person. Watercraft	Components	
Design Categ. acc. to Art. 20 (1) (a)(i)	Design Categ. acc. to Art. 20 (1) (a)(ii)	Design Categ. acc. to Art. 20 (1) (b)(i)	Design Categ. acc. to Art. 20 (1)(b)(i)	Design Categ. acc. to Art. 20 (1) (b)(ii)	Design Categ. acc. to Art. 20 (1)(c)	Design Categ. acc. to Art. 20(2)	Design Categ. acc. to Art. 20(3)	
		harmon. stand. relating to points 3.2 and 3.3 of Part A of Annex I are compl. with	harmon. stand. relating to points 3.2 and 3.3 of Part A of Annex I are not compl. with					
A		X ₁			X ₁	X ₁		
A1	X ₁	X ₂	X ₁		X ₂	X ₂		
A2								
B	X _{2,3,4,5}	X _{1,2,3,4}	X _{3,4,5,6}	X _{2,3,4,5}	X _{1,2,3,4}	X _{3,4,5,6}	X _{1,2,3,4}	
C	X ₂	X ₁	X ₃	X ₂	X ₁	X ₃	X ₁	
C1								
C2								
D	X ₃	X ₂	X ₄	X ₃	X ₂	X ₄	X ₂	
D1								
E	X ₄	X ₃	X ₅	X ₄	X ₃	X ₅	X ₃	
E1								
F	X ₅	X ₄	X ₆	X ₅	X ₄	X ₆	X ₄	
F1								
G	X ₆	X ₅	X ₇	X ₆	X ₅	X ₇	X ₅	
H	X ₇	X ₆	X ₈	X ₇	X ₆	X ₈	X ₆	
H1								
PCA								

Directive 2013/53/EU								
Recreational Craft and Personal Watercraft								
Exhaust Emissions		Noise Emissions						Post-Market
Propulsion Engines		Recreational Watercraft			Personal Watercraft			
	Products referred to in points (d) and (e) of Art. 2(1)	Products referred to in points (d) and (e) of Art. 2(1)	Recreational craft referred to in Art. 22(1)	Recreational craft referred to in Art. 22(1)	Recreational craft referred to in Art. 22(1)	Personal craft referred to in Art. 22(2)	Personal craft referred to in Art. 22(2)	Products referred to in Art. 19(2), Art. 19(3), and Art. 19(4)
	where tests are cond. using the harm. stand.	where tests are cond. without using the harm. stand.	where tests are cond. using the harm. stand. for noise measurement	where tests are cond. without using the harm. stand. for noise measurement	where the Froude number and power displacement ratio method is used for ass.	where tests are cond. using the harm. stand. for noise measurement	where tests are cond. without using the harm. stand. for noise measurement	
A					X ₁			
A ₁			X ₁			X ₁		
A ₂								
B	X _{1,2,3,4}	X ₁						
C	X ₁							
C ₁		X ₁						
C ₂								
D	X ₂							
D ₁								
E	X ₃							
E ₁								
F	X ₄							
F ₁								
G	X ₅	X ₂	X ₂	X ₁	X ₂	X ₂	X ₁	
H	X ₆		X ₃		X ₃	X ₃		
H ₁								
PCA								X ₁

Note: According to Article 24(3) Directive 2013/53/EU, "The possibility of using accredited in-house bodies referred to in Modules A1 and C1 of Annex II to Decision No 768/2008/EC shall not be applicable."

Directive 2014/34/EU					
Equipment and Protective Systems Intended for Use in Potentially Explosive Atmospheres					
Equipment and Devices					Prot. Systems
	Equipment and devices referred to in Art. 13(1)(a)	Equipment and devices referred to in Art. 13(1)(b)(i)	Equipment and devices referred to in Art. 13(1)(b)(ii)	Equipment and devices referred to in Art. 13(1)(c)	Prot. Systems referred to in Art. 13(2)
A			X ₁ ⁶¹	X ₁	
A1					
A2					
B	X _{1,2}	X _{1,2}			X _{1,2}
C					
C1		X ₁			
C2					
D	X ₁				X ₁
D1					
E		X ₂			
E1					
F	X ₂				X ₂
F1					
G	X ₃	X ₃	X ₂	X ₂	X ₃
H					
H1					

Note: Conformity assessment procedure for components referred to in Art. 13(3) mirror the required conformity assessment procedure for the equipment and protective systems in which the component is implemented.

^{61.} Additionally, the technical documentation provided for in the internal production control needs to be communicated to a notified body, which shall acknowledge receipt of it as soon as possible and shall retain it.

Directive 2014/33/EU			Directive 2014/53/EU		
Lifts and Safety Components for Lifts			Radio Equipment		
Safety Components		Lifts			
Art. 15		Art. 16	demonstrating compliance of radio equipment with the essential requirements set out in Art. 3(1)	assessing the compliance of radio equipment with the essential requirements set out in Art. 3(2) and (3)	assessing the compliance of radio equipment with the essential requirements set out in Art. 3(2) and (3)
				the manufacturer has applied harm. stand.	the manufacturer has not applied or has applied only in part harm. stand.
A			X ₁	X ₁	
A1					
A2					
B	X _{1,2}	X _{1,2,3}	X ₂	X ₂	X ₁
C			X ₂	X ₂	X ₁
C1					
C2	X ₁				
D		X _{3,6}			
D1					
E	X ₂	X _{2,5}			
E1					
F					
F1					
G		X ₇			
H	X ₃		X ₃	X ₃	X ₂
H1		X _{QS only: 4,5,6; full: 8}			
Lifts Annex V		X _{1,4}			

Regulation (EU) 2016/425			
Personal Protective Equipment			
Category I	Category II	Category III	Category III Single Unit for Individual User
Art. 19(a)	Art. 19(b)	Art. 19(c)	Art. 19(c)
A	X ₁	X _{1,2}	X _{1,2,3}
A1			
A2			
B			
C			
C1			
C2			
D			
D1			
E			
E1			
F			
F1			
G			
H			
H1			

Regulation (EU) 2016/424		Regulation (EU) 2016/426	
Cableway Installations		Appliances Burning Gaseous Fuels	
Subsystems and Safety Components	Series-manufactured Appliances	Single Unit and Small Quantities Appliances	
Art. 18(2)	Art. 14(2)	Art. 14(3)	
A			
A1			
A2			
B	X _{1,2}	X _{1,2,3,4}	
C			
C1			
C2		X ₁	
D	X ₁	X ₂	
D1			
E		X ₃	
E1			
F	X ₂	X ₄	
F1			
G	X ₃	X ₁	
H			
H1	X ₄		

Regulation (EU) 2017/745				
Medical Devices				
	Class III devices other than custom-made or investigational devices	Class II b devices other than custom-made or investigational devices	Class II b implantable devices (with exceptions)	Class II a devices other than custom-made or investigational devices
	Art. 52(3)	Art. 52(4)	Art. 52(4).	Art. 52(6)
MDR Annex II				X ₂
MDR Annex III				X ₂
MDR Annex IX	X ₁	X ₁ (in parts)	X ₁ (in parts)	X ₁ (in parts)
MDR Annex X	X ₂	X ₂	X ₂	
MDR Annex XI	X ₂	X ₂	X ₂	X ₂ (in parts)
MDR Annex XIII				

Regulation (EU) 2017/745				
Medical Devices				
	Class I devices	Class I* devices	Custom-made devices other than class III custom-made implantable devices	Class III custom-made implantable devices
	Art. 52(7)	Art. 52(7)	Art. 52(8)	Art. 52(8)
MDR Annex II	X _{1,2}	X _{1,2}		
MDR Annex III	X _{1,2}	X _{1,2}		
MDR Annex IX		X ₁ (in parts)		X ₁ (in parts)
MDR Annex X				
MDR Annex XI		X ₂ (in parts)		X ₂ (in parts)
MDR Annex XIII			X ₁	X _{1,2}

Regulation (EU) 2017/746					
In-vitro Diagnostic Medical Devices					
	Class D devices, other than devices for performance study	Class C devices, other than devices for performance study	Class B devices, other than devices for performance study	Class A devices, other than devices for performance study	Class A devices placed on the market in sterile condition, other than devices for perf. study
	Art. 48(3) or Art. 48(4)	Art. 48(7) or Art. 48(8)	Art. 48(9)	Art. 48(10)	Art. 48(10)
IVDR Annex II				X ₁	X _{1,2}
IVDR Annex III				X ₁	X _{1,2}
IVDR Annex IX	X ₁ (in parts)	X ₁ (in parts)	X ₁ (in parts)		X ₁ (in parts)
IVDR Annex X	X ₂	X ₂			
IVDR Annex XI	X ₂	X ₂ (in parts)			X ₂ (in parts)

